

Court No. - 3

Case :- WRIT - C No. - 3985 of 2024

Petitioner :- Ashok Kumar Singh

Respondent :- State Of U.P. Thru. Prin. Secy. Energy Deptt. Civil Sectr. Lko. And Others

Counsel for Petitioner :- Brijendra Mani Pandey, Dharmendra Kumar Singh, Himanshu Shukla

Counsel for Respondent :- C.S.C., Manish Jauhari

Hon'ble Mrs. Sangeeta Chandra, J.

Hon'ble Brij Raj Singh, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for opposite parties no.1,2 and 3 and Sri Manish Jauhari, learned counsel for opposite parties no. 4 and 5.

2. This petition has been filed with the following main prayers:-

"(i) A writ, order or direction in the nature of certiorari for quashing the recovery citation dated 09.10.2023 an amount of Rs.481919/- which is issued by the opposite party no.3 i.e. the Tahsildar, Tahsil- Amethi, District Amethi as well as notice dated 19.04.2023 issued by the opposite party no.5 i.e. the Executive Engineer, Madhyanchal Vidyut Vitran Khand-II, Gauriganj, District Amethi by which the opposite party no.5 imposed penalty against the petitioner contained in Annexure no.1 and Annexure no. 2 to this writ petition."

(ii) A writ, order or direction in the nature of mandamus commanding the opposite parties no.4 and 5 to give a proper opportunity to hear the petitioner and to put his objection against so called recovery notice according to law."

3. It is the case of the petitioner that the

petitioner has taken domestic electricity connection in his premises on 30.01.1999 and the petitioner has been paying his bills regularly. All of sudden, the respondents made the petitioner an accused for theft of electricity and a recovery notice dated 09.10.2023 has been issued against him for an amount of Rs. 391813/-. No reasons have been given in such recovery, hence this writ petition has been filed.

4. Sri Manish Jauhari has pointed out the annexure no.2 to the writ petition dated 19.04.2023 which refers to an enforcement team of opposite party nos.4 and 5, carrying out an order on the spot inspection of the premises wherein the theft of electricity was found and, therefore, under Paragraph 6.8 of the Electricity Supply Code, a provisional assessment has been made. If the petitioner is aggrieved by such provisional assessment, the letter dated 19.04.2023 addressed to the petitioner to approach the Executive Engineer within fifteen days. However, the petitioner did not approach within the time prescribed . He wrote a letter on 02.06.2023, a copy of which has been filed as Annexure no.5.

5. Sri Manish Jauhari ,on the basis of instructions, says that in case petitioner approaches opposite party no.5/ Executive Engineer, Madhyanchal Vidyut Vitran Khand-II, Gauriganj, District Amethi regarding incorrect assessment, the same shall be considered by opposite party no.5 and final assessment order as per Section 126 of the

Electricity Act will be passed thereafter.

6. This writ petition is disposed of with a direction of the petitioner to approach opposite party no.5/Executive Engineer, Madhyanchal Vidyut Vitran Khand-II, Gauriganj, District Amethi within a week from today. If he approaches the opposite party no. 5 within the time prescribed and completes all formalities, then his case shall be considered by opposite party no.5 and appropriate orders be passed within a period of four weeks thereafter under section 126 of the Electricity Act.

7. For a period of six weeks or a till the decision is taken by opposite party no.5 whichever is earlier, the recovery in pursuance of impugned order shall remain stayed.

Order Date :- 2.5.2024
Pks